

**Court No. - 4**

**Case :-** CONTEMPT APPLICATION (CIVIL) No. - 4353 of 2021

**Applicant :-** Chandra Pal Singh

**Opposite Party :-** Mr Rajesh Kumar Gupta, The Executive Engineer/S.D.O.,  
Vidyut Vitran Khand Milak

**Counsel for Applicant :-** Vivek Kumar Mishra

**Hon'ble Prakash Padia,J.**

Heard learned counsel for the applicant.

The applicant is before this Court for a direction to initiate contempt proceeding against the opposite parties for wilful disobedience of the order dated 06.01.2021 passed in Writ Petition No.25245 of 2020 (Chandra Pal Singh Vs. State of U.P. & others.). The aforesaid order is quoted as under:-

*"Heard Sri Vivek Kumar Mishra, learned counsel for the petitioner, Sri Pranjal Mehrotra, learned counsel for the Power Corporation and the learned standing counsel.*

*The petitioner has preferred this petition for mandamus, directing respondent no. 3 to correct the electric bill in respect of Electric Connection No.771718264559 (domestic).*

*Sri Mehrotra, learned counsel for the Power Corporation rightly states that the appropriate remedy for the petitioner is to approach the Competent Authority concerned under Regulation 6.5 of the U.P. Electricity Supply Code, 2005, who shall consider the claim of the petitioner forthwith.*

*Ordered accordingly.*

*The petition is disposed of. "*

Learned counsel for the applicant submits that a copy of the aforesaid order was submitted for compliance before the opposite parties but the opposite parties have willfully not complied with the order and, thus, have committed civil contempt for punishment under Section 12 of the Contempt of Courts Act, 1971. Today when the matter is taken up, Sri P.N. Rai, Advocate put his appearance on behalf of opposite party. He submits that sometime be given to comply with the aforesaid order.

Heard learned counsel for the parties.

In the facts and circumstances of the case, this contempt application is disposed of directing the Naresh Kumar, The Executive Engineer/S.D.O., Vidyut Vitran Khand Milak District Rampur to comply with the order passed by the Writ Court in its letter and spirit expeditiously and preferably within a period of six weeks from today.

**Order Date :- 8.10.2021**

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